

		<i>America</i> (2020) 48 Cal.App.5th 240, 246-247.) The party claiming fees has the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation, and reasonable in amount. (<i>Ibid</i>; <i>Levy v. Toyota Motor Sales, U.S.A., Inc.</i> (1992) 4 Cal.App.4th 807, 816.) "In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (<i>Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.</i> (2008) 163 Cal.App.4th 550, 564.) With regard to the determination of a reasonable hourly rate, the court may rely on its own knowledge and familiarity with the legal market as well as the experience, skill, and reputation of the attorney requesting fees, the difficulty or complexity of the litigation to which that skill was applied, and declarations from other attorneys regarding prevailing fees in the community and rate determinations in other cases. (<i>Morris v. Hyundai Motor America</i> (2019) 41 Cal.App.5th 24, 41.) The Court finds the hourly rates requested adequately supported and reasonable given counsels' experience and the nature of the dispute. (See Wirtz Decl., ¶¶ 4-11, 17-26 and Exs. 2-4; see also, <i>Baer v. Tedder</i> (2025) 115 Cal.App.5th 1139, 1160-1161.) Defendant argues the hourly rates are unreasonable. However, Defendant failed to present any evidence to rebut the hourly rates requested. The Court finds the requested multiplier not justified on the record presented and thus the request for a multiplier is DENIED The Court has reviewed the billing records submitted by Plaintiff's counsel and determines the fees claimed are reasonable in light of the circumstances of this case. While the total amount of fees sought is substantial, the amount of time incurred is supported by counsel's declaration and the detailed billing records. Defendant failed to show any specific billing entries should be reduced as excessive or unreasonable. Based on the foregoing, the motion is GRANTED IN PART to award Plaintiff total attorney's fees against Defendant in the sum of \$42,125.00. Plaintiff's evidentiary objections are OVERRULED. <i>Counsel for Plaintiff is ordered to give notice of this ruling.</i>
2.	MedLab2020, Inc. v. UHC of California	Before the Court is the unopposed application of attorney Robert Keefe to appear in this matter pro hac vice as counsel for defendants.

	25-1506621	Mr. Keefe has complied with the requirements set forth in <i>California Rules of Court, Rule 9.40</i>. Accordingly, the application is GRANTED. <i>Mr. Keefe is ordered to give notice of this ruling.</i>
3.	Kolaar v. FCA US LLC 25-1493558	The motion for terminating sanctions filed by defendants FCA US LLC and Huntington Beach Chrysler Dodge Jeep Ram (collectively, Defendants) against plaintiff Aaron Van Korlaar (Plaintiff) is DENIED WITHOUT PREJUDICE. The proof of service for this motion lists an incorrect email address for Plaintiff's counsel. The email address for Plaintiff's counsel listed in the proof of service contains a misspelling and omits the number 4 from the email address. (See ROA 10, 41.) There is no opposition filed. It is thus unclear if Plaintiff received proper notice of this motion. Based on the foregoing, the motion is DENIED WITHOUT PREJUDICE. <i>Counsel for Defendant shall give notice.</i>
4.	Jergensen v. NAHS Holding, Inc. 24-1411114	<i>(Sorry, still pending)</i>
5.	Li v. Li 25-1517999	<i>(Sorry, still pending)</i>
6.	Potter v. Gustafson 26-1554580	<i>(Continued)</i>
7.	Mkhitarian v. Mustafiz 25-1475287	Before the Court is a demurrer by defendant Tanim Mustafiz (Defendant) on the Second Amended Complaint (SAC) of plaintiff Albert Mkhitarian (Plaintiff). For the reasons set forth below, the demurrer is SUSTAINED as to the 1st cause of action without leave to amend. Defendant shall file his answer, if any, within 10 days. Plaintiff failed to cure the defect in the prior pleading. In the SAC, Plaintiff alleges Defendant was an equal shareholder of TestJet with Plaintiff, and adds that Defendant "was also an officer and director of TestJet, and, by reason of such, owed fiduciary duties to Plaintiff." (SAC ¶ 21.) These facts are still insufficient to establish the existence of a fiduciary relationship giving rise to breach of fiduciary duty. (<i>City of Atascadero v. Merrill Lynch, Pierce, Fenner & Smith</i> (1998) 68 Cal. App. 4th 445, 483 [elements].) Corporate officers and directors stand in a fiduciary relation to both the corporation and its stockholders. (<i>Bancroft-Whitney Co. v. Glen</i> (1966) 64 Cal.2d 327, 345.) There is a "strong public interest in assuring that corporate officers, directors, majority shareholders and others are faithful to their fiduciary obligations to minority shareholders." (<i>Meister v. Mensinger</i> (2014) 230 Cal.App.4th 381, 395 [emphasis added], citing <i>Steinberg v. Amplica, Inc.</i> (1986) 42 Cal.3d 1198, 1210; see e.g., <i>Persson v. Smart Inventions, Inc.</i> (2005) 125 Cal.App.4th 1141,